

		<i>Richmond City Center, L.P.</i> (2022) 86 Cal.App.5th 282, 290 [“[u]nder the well-established rule of statutory construction, a specific statute controls over a general statute covering the same subject.”].) Here, Plaintiff has brought a medical malpractice action against a surgeon and his alleged employer/agent. Each Defendant asserts as their 23rd affirmative defense in their respective answers that this action is barred by the statute of limitation. (ROA 55, 99.) They now move for bifurcation of the defense. Generally, a trial court considers the grounds stated in the notice of motion and is not required to consider a ground for relief that the moving party did not raise. (<i>Luri v. Greenwald</i> (2003) 107 Cal.App.4th 1119, 1125.) However, despite Defendants’ omission of section 597.5 from their notice of motion, the court may grant relief under that section. (See <i>Kinda v. Carpenter</i> (2016) 247 Cal.App.4th 1268, 1277-1278 [court had discretion to rule on grounds not stated in motion where no objection and parties had fair opportunity to address issues]; <i>Luxury Asset Lending, LLC v. Philadelphia Television Network, Inc.</i> (2020) 56 Cal.App.5th 894, 908-909 [where memorandum of points and authorities made clear the grounds for relief sought, court “should have overlooked” omission of grounds in notice].) Here, Defendants’ notice clearly states that they seek bifurcation of the trial and that the motion will be based on the attached memorandum of points and authorities, which in turn specifically states Defendants seek bifurcation of the statute of limitations defense to be tried first. Thus, Plaintiff had a fair opportunity to address the issue and, in fact, did so. (See Opp., pp. 6:18-7:3, 7:22-8:5, 9:17-10:6.) The motion is granted. Defendants’ statute of limitations defense will be tried in the first phase of the trial. If Plaintiff prevails, liability and damages will be tried in the second phase before the same jury.
5.	KIM VS. TRAN 2026-01566561	MOTION TO CONSOLIDATE Plaintiff Harinne Kim’s Motion to Consolidate is GRANTED. The Court ORDERS the case numbered 30-2026-01566561-CU-OR-CJC consolidated with this case, for all purposes. Ordinarily the only triable issue in an unlawful detainer proceeding is the right to possession, along with any incidental damages that result from the property's unlawful detention. (<i>Larson v. City and County of San Francisco</i> (2011) 192 Cal.App.4th 1263, 1297.) However, when allegations in the pending unlawful detainer and unlimited civil actions demonstrate that the unlawful detainer plaintiff's title might be insufficient to justify relief, and that the unlawful detainer defendant might be entitled to quiet title to the disputed property, a trial court should consolidate the two actions. (<i>Martin-Bragg v. Moore</i> (2013) 219 Cal. App. 4th 367, 385; <i>accord</i>

		<i>Berry v. Society of St. Pius X</i> (1999) 69 Cal. App. 4th 354, 364; <i>Mehr v. Superior Court</i> (1983) 139 Cal. App. 3d 1044, 1047-50; <i>Asuncion v. Superior Court</i> (1980) 108 Cal. App. 3d 141, 147.) Defendant cites to <i>Coyne v. De Leo</i> (2018) 26 Cal.App.5th 801, 818-819, to support his argument that title of the tenant can be adjudicated in an unlawful detainer proceeding, thus, it need not be consolidated with this case. However, as stated in <i>Martin-Bragg</i>: “When an unlawful detainer proceeding and an unlimited action concerning title to the property are simultaneously pending, the trial court in which the unlimited action is pending may stay the unlawful detainer action until the issue of title is resolved in the unlimited action, or it may consolidate the actions. If it does neither and instead tries the issue of title under the summary procedures that constrain unlawful detainer proceedings, the parties' right to a full trial of the issue of title may be unfairly expedited and limited. If complex issues of title are tried in the unlawful detainer proceeding, the proceeding loses its summary character; defects in the plaintiff's title ‘are neither properly raised in this summary proceeding for possession, nor are they concluded by the judgment.’ ” (<i>Martin-Bragg, supra</i>, 219 Cal. App. 4th 367, 385.) Here, the issues of title are clearly complicated with Defendant asserting the certain text messages were faked and the doctrine of unclean hands. Additionally, Plaintiff claims title through an oral agreement. Resolving all these issues in a summary proceeding would be prejudicial against Plaintiff. Defendant concedes in his opposition the issue of title is too complex for an unlawful detainer's summary proceeding. (Opp., p. 9 [“Consolidating the two would not simplify anything; it would import the very complexity that the summary UD procedure exists to keep out”].) However, contrary to Defendant's assertion, the complexity of an issue of title does not allow the party to proceed with an unlawful detainer action before the question of title is determined.
6.	SANDOVAL VS. LOS ALAMITOS UNIFIED SCHOOL DISTRICT 2022-01294532	MOTION FOR DISCOVERY PROTECTIVE ORDERS Plaintiffs' Motion for Discovery Protective Order and Extension of Time to Respond is DENIED in part and GRANTED in part. Plaintiffs Emma Sandoval, through her guardian ad litem Rachel Sandoval, and Julia Johnson, through her guardian ad litem Suzanne Johnson, move for a protective order limiting and/or narrowing the first set of written discovery requests propounded by Defendant Pali Institute Inc., and for an order that Plaintiffs may produce certain information designated as “Confidential – Attorneys' Eyes Only.” <u>Legal Standard</u> Code of Civil Procedure Section 2017.020(a) provides: “The court shall limit the scope of discovery if it determines that the burden, expense, or intrusiveness of that discovery clearly outweighs the